

CUI
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7L524R0011

☒ ORIGINAL

☐ ADDENDUM (attach copy of original J&A for add-ons or revisions)

1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.
2. The action being approved is the acquisition of supplies on other than a full and open competition basis.
3. The supplies required to meet the using activity's needs are described as follows:

BRIEF DESCRIPTION	NSN/P/N	QUANTITY	EST. VALUE	AMSC
SEAT,VEHICULAR	2540-016580287	42	\$ [REDACTED]	3D

This Solicitation is for a DLA Direct Procurement PR # 7005802097 nomenclature: SEAT, VEHICULAR Weapon System or Class of item: Wheeled Vehicle/HMMVW
With a quantity of 42 each with an option.

Estimated Based Value \$ [REDACTED]

Estimated Total Value (Base + Options) \$ [REDACTED]

Maximum Contract Value \$ [REDACTED]

FOR ADD-ONS, PROVIDE VALUE OF OPTION YRS REMAINING N/A

4. The statutory authority permitting other than full and open competition is:
10 U.S.C 3204 (a)(1) Available from only one or a limited number of sources.
5. If restricted to the only source(s) of supply, include source(s) and CAGE code:
Source: BAE Systems & Armaments L.P. **Cage:** 54786 **Part Number:** 122701-3

The use of the authority cited below:

AMC 3. Acquire, for the second or subsequent time, directly from the manufacturer

Controlled by: DLA Land and Maritime
Controlled by: FLSCD
CUI Category: PROCURE/SSI
Distribution/Dissemination Control: FED ONLY
POC: [REDACTED]

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The use of the authority cited is based on:

☒ *AMSC D*. The data needed to acquire this part competitively is not physically available, it cannot be obtained economically, nor is it possible to draft adequate specifications or any other adequate, economical description of the material for a competitive solicitation. AMCS 3, 4, or 5 are valid.

Product Specialist, [REDACTED], certified the following on 4/2/2024 :

- This item has AMC/AMSC of 3/D. The Government does not have adequate data to allow for full and open competition. BAE SYSTEMS LAND & ARMAMENTS LP (54786) is the only source approved by the Design Control Activity and the only source known to possess the data necessary to meet the Government's requirements. There are no outstanding DLA Form 339 requests for additional sources. Technical Data Certification is attached.

6. Efforts to ensure that offers are solicited from as many sources as practicable are:

- ☒ The acquisition will be synopsisized on or about 4/5/2024 and will be publicly posted for a period of 15 calendar days.
- ☐ Manufacturer of similar products identified in the market research will be solicited.
- ☒ Dealers of the manufacturer will be solicited.
- ☐ A synopsis exception cited in FAR 5.202 applies.
(Explain) N/A
- ☐ Other.
(Explain) N/A

At the completion of the synopsis period, the Purchase Request (PR) will be solicited on the internet for 30 days via the DLA Internet Bid Board System (DIBBS).

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable.

- Past procurement history will be reviewed, and a PPI price analysis will be performed. Other than cost and pricing data may be requested and analyzed. Additionally, discussions may be held with offerors, if needed, to determine price fair and reasonable.
- This is a definite quantity firm fixed price contract for a total quantity of 42 EA.
- This item is being procured on an All or None basis.
- Certified Cost and Pricing Data may be obtained if there is no competition and over the TINA threshold.
- Based upon the above techniques, the Contracting Officer hereby determines that the anticipated cost to the Government will be fair and reasonable.

8. Market Research/Efforts to Obtain Competition:

Sources Sought information was posted on Sam.Gov on 03/28/2024. Buyer received information from BAE Systems Land and Armaments L.P. expressing interest on this solicitation.

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Market Survey [10 U.S.C. 3204(e)(2)(D)]:

A market survey was conducted on/during: 3/26/2024

Total number of vendors contacted: 2

Names of vendors contacted: CNH Industrial America, LLC (10988) [REDACTED] [REDACTED]
[REDACTED] and BAE SYSTEMS LAND & ARMAMENTS L.P. (54786) [REDACTED] [REDACTED]
[REDACTED] were contacted with a market survey via email and request to return within 3 business days.

Techniques used to conduct survey:

☒ Email ☒ Online Market Research ☒ Call

Explanation: Market research consisted of review of past procurements, market surveys requested, and internet sources. As well as buyer contacted the OEM BAE Systems Land and Armaments L.P. and spoke to them over the phone regarding the survey response. [REDACTED] After buyer contacted BAE Systems, they advised that they are interested in quoting, [REDACTED]
[REDACTED]

Types of information requested:

☒ Size of Business ☒ Business Type ☒ Commerciality ☒ Price Listed/Stock Inventory
☒ Willingness to Offer Proposal ☒ Delivery Schedule ☒ Quantity Sensitivity
☒ Inspection/Acceptance Points

Summary of information received:

Please see previous history of this NSN below:

SPE7L322P8128 A	54786	BAE SYSTEMS LAND & ARMAMENTS L.P.	12	EA	\$3,055.60	USD	1
9/6/2022 1	BG	8509361981 N					
SPE7L322P6921 A	54786	BAE SYSTEMS LAND & ARMAMENTS L.P.	13	EA	\$2,945.70	USD	1
7/20/2022 1	BG	8509238629 N					
SPE7L422P2900 A	54786	BAE SYSTEMS LAND & ARMAMENTS L.P.	9	EA	\$3,055.60	USD	1
7/13/2022 1	BG	8509228369 N					
SPE7L422V0694 A	54786	BAE SYSTEMS LAND & ARMAMENTS L.P.	13	EA	\$2,802.08	USD	1
12/8/2021 1	XG	8508682526 N					
SPE7L422P0654 A	54786	BAE SYSTEMS LAND & ARMAMENTS L.P.	7	EA	\$2,802.08	USD	1
12/3/2021 1	BG	8508641043 N					

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Information received regarding the commerciality of the item(s):

The COTS field, generated by the Product Specialist, is the Product Master in SRM was left blank. Product Specialist was consulted and after evaluation determined that part number 122701-3 is not commercial. The Contracting Officer determines that this item is non-commercial.

9. A listing of sources, if any, indicating an interest in the acquisition is: Yes, list below.
BAE Systems Land & Armaments (54786)

10. The following actions are being taken to identify additional sources:

- ☒ Solicitation contains DLA Procurement Note, L04 Offers for Part Numbered Items
- ☒ Solicitation contains DLA Procurement Note, M06 Evaluation of Offers for Part Numbered Items

11. DFARS PGI (Procedures, Guidance, and Information) 206.303 and 206.304 state that justifications citing the authority at FAR 6.302-1 to permit the use of other than full and open competition shall include a copy of a previous justification. Previous buys were under SAT thereby not requiring a J&A.

I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

WHITING.MONICA.L.1378381815
Contracting Officer

Digitally signed by
WHITING.MONICA.L.1378381815
Date: 2024.04.25 06:24:43 -04'00'

Click or tap to enter a date.
Date

APPROVAL/CERTIFICATION

I have reviewed and approve this justification:

WIEBUSCH.JAMIE.1251897324
Competition Advocate Signature

Digitally signed by
WIEBUSCH.JAMIE.1251897324
Date: 2025.02.20 10:51:14 -05'00'

Click or tap to enter a date.
Date

APPROVAL REQUIREMENTS

- ☐ Up to \$750,000 Contracting Officer
- ☒ \$750,000 to \$15,000,000 Competition Advocate

Attachment(s):Tech Certification

DLA Land & Maritime Justification for Other Than Full & Open Competition
(November 2021)
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